

This is for information and instruction. Do not file it.

HOW TO VACATE & EXPUNGE ELIGIBLE CANNABIS CONVICTIONS

STEPS TO VACATE & EXPUNGE ELIGIBLE CANNABIS CONVICTIONS page 2

ARE THESE FORMS FOR ME? page 3

IMPORTANT INFORMATION page 4

HOW TO REVIEW YOUR CRIMINAL RECORDS page 5

HOW TO FILL OUT & FILE THE FORMS page 7

EXTRA HELP FILLING OUT THE FORMS page 9

COSTS & FEES page 9

NEXT STEPS page 10

APPENDIX: CASE WORKSHEET page 13



This packet is not legal advice. It provides general instructions on how to use these forms in your court case. It cannot and does not try to cover everything that might happen in your court case. Your use of the forms does not guarantee you will be successful in court.

How a judge handles a case can vary from county to county. **Your county may have special requirements that are not covered in these instructions.** Ask the Circuit Clerk's office if your county has local rules and, if so, where you can get a copy.

If you are **not** a citizen of the United States, consult with an immigration lawyer before using these forms.
Si **no** es ciudadano de los Estados Unidos, consulte con un abogado de inmigración antes de usar estas formas.

STEPS TO VACATE & EXPUNGE ELIGIBLE CANNABIS CONVICTIONS

1 REVIEW YOUR CRIMINAL RECORDS.

Criminal records list the offenses you were arrested for, the offenses you were charged with, and the outcome of the cases, including any sentences you received. Learn how to read your criminal record and find out if your offenses are eligible to vacate and expunge using these forms.

For information about where to get copies of your criminal record, see page **6**.

Review the table below to see if your conviction qualifies to file a *Motion to Vacate & Expunge Eligible Cannabis Convictions*. Then, fill out the **Case Worksheet** on page **13**.

The following list is a guide for misdemeanor/Class 4 felony cannabis convictions that may be vacated and expunged using these forms. Convictions must have occurred BEFORE June 25, 2019:

CHARGE CONVICTED OF:	AMOUNT OF CANNABIS:
Possession of Cannabis (all dates before 6/25/2019)	500 grams or less
Attempted Possession of Cannabis (between 8/15/97 and 6/24/19)	2000 grams or less
Attempted Possession of Cannabis (prior to 8/15/97)	Any amount
Manufacture / Delivery of Cannabis (between 9/24/83 and 6/24/19)	60 grams or less
Attempted Manufacture/Delivery of Cannabis (between 9/24/83 and 6/24/19)	500 grams or less

2 FILL OUT AND FILE THE FORMS.

Fill out these forms to erase qualifying cannabis convictions from your criminal record so it is like they never happened.

File your form with the Circuit Clerk in the county where the eligible cannabis conviction occurred.

Use these forms:

- *Motion to Vacate & Expunge Eligible Cannabis Convictions*
- *Order Granting or Denying Motion to Vacate & Expunge Eligible Cannabis Convictions*
- *Additional Cannabis Convictions* (if needed)

3 NEXT STEPS.

You may need to go to court for a court date in front of a judge. Some counties schedule a court date right away, but others will only schedule a court date if the prosecutor objects to your *Motion*.

If the judge approves your *Motion*, a copy of the *Order* will be sent to the arresting police departments and Illinois State Police. Those agencies have 60 days from the time they receive a copy of the *Order* to expunge your records.

Laws covering these forms: 410 ILCS 705, 20 ILCS 2630/5.2(i)(3)

ARE THESE FORMS FOR ME?

You may **use these forms to ask the court to vacate and expunge eligible cannabis convictions** under the Cannabis Regulation & Tax Act**.**

Use these forms for:

- Misdemeanor and Class 4 felony **convictions** for Sections 4 and 5 of the Cannabis Control Act that occurred **before** June 25, 2019.

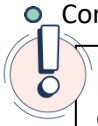
How do I know if I was convicted of a misdemeanor or Class 4 felony and can use this form?

The disposition (outcome) of the offense on your record tells you if you were convicted or not and includes the class or type of conviction. The tables on pages 16 and 17 explain what the disposition codes or descriptions on your record mean and if you were convicted or not.

- If you see the disposition for your offense listed on **Table 1** on page 16, you were convicted of that offense. If you were convicted of a misdemeanor or Class 4 felony cannabis offense, it can be vacated and expunged **using this form only**.
- If you see the disposition for your offense on **Table 2** on page 16, then you were convicted of that offense but you have an exception that allows you to apply for expungement on a different form.
  - These cases require a different form. See *How to Clear Your Criminal Record: Expungement & Sealing* at ilcourts.info/expunge-forms for more information on expunging such cases
- If you see the disposition for your offense on **Table 3** on page 17, then you were not convicted for that offense.
  - Offenses without convictions may be expunged, but require a different form. See *How to Clear Your Criminal Record: Expungement & Sealing* at ilcourts.info/expunge-forms for more information on expunging such cases.

Do not use these forms for:

- Arrests or convictions for other non-cannabis offenses.
- Arrests or other cases that did not lead to a conviction for a cannabis offense.
- Convictions for Class 3, Class 2, Class 1, or Class X cannabis offenses.



If you have any of these arrests or convictions in the state of Illinois, you may still be eligible to expunge or seal those offenses using different court forms found here ilcourts.info/expunge-forms under the "Adult" menu on the webpage.

- Out-of-State Records and Federal Records: Do not use this form for criminal records from a state other than Illinois, or for federal criminal records.
  - If your criminal charge is from another state, check with the state where you were charged to see if expungement is an option.
  - If you were charged in federal court, check with the U.S. Department of Justice at: justice.gov/pardon.

FORMS REQUIRED:

- ***Motion to Vacate & Expunge Eligible Cannabis Convictions***: Gives the court the information needed to decide if you have eligible cannabis convictions to vacate and expunge.
- ***Order Granting or Denying Motion to Vacate & Expunge Eligible Cannabis Convictions***: Used by the judge to say which cases from your *Motion to Vacate and Expunge* are approved.

FORMS YOU MAY NEED:

- ***Additional Cannabis Convictions***: Use this form if you have more cases to vacate and expunge than will fit on the *Motion* form.

You can find all of the statewide forms online at ilcourts.info/forms

IMPORTANT INFORMATION

What does it mean to vacate and expunge my cannabis conviction?

- Some cannabis convictions are eligible to be vacated and expunged.
  - To **vacate** a cannabis conviction means to set aside the finding of guilt, as if it did not happen.
  - To **expunge** means to erase the police and court records of the conviction.

Why should I vacate and expunge my cannabis convictions?

Vacating a conviction erases the legal effects of the conviction. This means:

- If your conviction is vacated, you can legally state that you do not have a conviction for that cannabis case.
- If your **only** felony conviction is for an eligible Class 4 felony cannabis conviction, and it is vacated, **you are no longer convicted of a felony**.
- If you were barred from having a Firearm Owners Identification (FOID) Card due **only** to a Class 4 felony cannabis conviction, and that conviction is vacated, you may then be eligible for a FOID Card.

What types of cannabis convictions can be expunged using these forms?

- You can use these forms to expunge certain cannabis convictions. This includes cases where the court found you guilty and you received one of these outcomes:
  - Probation (other than Qualified Probation, successfully completed).
  - Jail or prison time.
  - Conditional discharge.
  - Time considered served.
  - Fines (with no other sentence).
  - Supervisions or qualified probations that are **not** successfully completed.

NOTE: For **definitions** of the dispositions listed above, including the difference between probation and qualified probation**,** see pages 16 and 17.

What types of cannabis offenses DO NOT qualify?

The following types of arrests, charges, or convictions on your criminal record **cannot** be expunged using these forms:

- Convictions for any Class 3 felony, Class 2 felony, Class 1 felony, or Class X felony cannabis offenses.
- A cannabis conviction not under section 4 or 5 of the Cannabis Control Act. For example, delivery on school grounds, cannabis trafficking, or possession of cannabis plants.
- Arrests or charges not leading to conviction.
- Court supervision or Qualified Probation that was successfully completed. These sentences are not convictions under Illinois law and qualify for expungement without a motion to vacate.
- Cannabis conviction records that are from out of state and federal court: Check with the state where you were charged to see what options are available. If you were charged in federal court, check with the U.S. Department of Justice at: justice.gov/pardon.

If I was arrested and charged with a Felony Class X, 1, 2, 3 Cannabis offense that ended in a conviction, can I vacate and expunge that conviction?

The only way you would be eligible to vacate and expunge the case is **if the court amended and reduced** your cannabis charge to a Class 4 felony or misdemeanor conviction.

- On your RAP Sheet, disposition or other court documents, if you see “charge amended,” “charge reduced” or “amended to misdemeanor,” your cannabis conviction may be able to be vacated and

expunged. If you are uncertain of the type or class of your conviction, you can get your sentencing paperwork from the Circuit Clerk of the county where you were convicted.

What if I have cases that do not qualify to be vacated and expunged?

The vast majority of dismissed cases and cases where supervision or qualified probation was satisfactorily completed may still be expunged, and misdemeanor and felony convictions may be sealed using a **different form**.

- If you have other charges or convictions that do not qualify, see *How to Clear Your Criminal Record: Expungement & Sealing* at ilcourts.info/expunge-forms for more information.

What could prevent me from getting my eligible cannabis conviction vacated and expunged?

You may not qualify if:

- You are still serving the sentence for the cannabis offense; AND/OR
- You have not completed all the conditions of the sentence; AND/OR
- You were also convicted of a non-cannabis offense in the same case.
  - For example: If you were convicted in one case of misdemeanor cannabis possession *and* retail theft, that case is **not eligible** to vacate and expunge.
- Even if you meet all the criteria, the judge can still deny your request. See "How does the judge decide to approve or deny my *Motion to Vacate & Expunge Eligible Cannabis Convictions*?" on page 10.

What if I have been convicted of an eligible cannabis offense in more than one Illinois county?

- You will have to file a separate *Motion to Vacate & Expunge* in each county.

Will I need to pay money to expunge or seal my criminal record?

- Criminal Record Fees (Chicago): If you are seeking to expunge or seal cases that took place in Chicago, there is a fee to get a copy of your RAP (Record of Arrests and Prosecutions) sheet and your Statewide Criminal History Transcript from the Chicago Police Department.
- Circuit Clerk Filing Fee: To file your *Motion* form. In certain places, a certified disposition fee may be required. The Clerk will include a processing fee for the Illinois State Police to process your expungement or sealing court order.



If you **cannot afford** the filing fees, you can ask the court to waive them. You can ask the court to file for free or at a reduced cost by filing the *Application for Waiver of Court Fees* which you can find at ilcourts.info/fee-waiver-forms.

How long will it take before I know if the court will grant my *Motion to Vacate & Expunge Eligible Cannabis Convictions*?

- It may take a few months to get a decision. The opposing attorney gets a chance to object to your *Motion.* They have 60 days from the day they receive your *Motion* to file a written objection. If they object, it means they do not want your record to be vacated or expunged.



STEP 1

REVIEW YOUR CRIMINAL RECORDS.

Why do I need my criminal records?

- You need this information to find out if your offenses can be expunged (erased) or sealed (hidden) and to fill out the forms.
- Criminal records list the offenses for which you were arrested, the offenses you were charged with, and the outcome of the cases, including any sentences you received.

What are the different types of criminal records?

There are two types of criminal records: court records and police records. **You do not need to pay for copies of all of your criminal records.**

- Court Records
  - You will need records for all of your court cases. This may be called a "docket sheet" or a "disposition." A disposition is the final judgment or outcome in a court case. There are no court dispositions for arrests or charges that did not lead to a court case.
- Police Records
  - Chicago RAP Sheet (Record of Arrests and Prosecutions): List of all arrests, charges, and court case outcomes that happened **in Chicago**.
  - Illinois State Police Statewide Criminal History Transcript: List of most arrests and convictions that happened in Illinois.

How do I view or get copies of my criminal records?

- **Access your records from the Circuit Clerk**. Many court records are available online. Some counties, like Cook County, do not provide online access to criminal records.
  - If you cannot find your court records online, go to the Circuit Clerk's Office in the county where your case was filed. Ask the Circuit Clerk for the information you need to fill out the forms. This information can be found in your court records.
  - You may be able to use the public computer at the Circuit Clerk's office to look up records and either print them or write down the information. Copies are available for a fee. Find your Circuit Clerk's website at: ilcourts.info/clerks.
- **Access your records from the Illinois State Police**. You are allowed to access your entire criminal history information from the Illinois State Police. Although not required, it is the best available source for your statewide criminal record. Please note, there might be discrepancies or missing information.

  You can get a "Statewide Criminal History Transcript" in 3 ways:

  - From the **Illinois State Police**:
    Illinois State Police, Bureau of Identification
    260 North Chicago Street, Joliet, Illinois 60432
    (815) 740-5160
    isp.illinois.gov/BureauOfIdentification
  - From your **local law enforcement agency**:
    Every law enforcement agency is allowed to provide you this information. Check with your local law enforcement agency to find out costs and times for fingerprinting.
  - From any **licensed LiveScan vendor** to get your transcript using your fingerprint. Find a LiveScan vendor at: idfprapps.illinois.gov/licenselookup/fingerprintlist.asp.

- **If you were arrested in Chicago, you MUST get your records from the Chicago Police Department.** Order a RAP sheet from the Chicago Police Department if you were arrested in Chicago. There will be a fee.
  - You must go to the Chicago Police Department to get your Chicago RAP sheet:
    Chicago Police Headquarters
    3510 S. Michigan Ave., Chicago, IL
    (312) 745-5508
  - You will receive your RAP sheet in the mail.
  - You should also request a copy of your Illinois State Police Statewide Criminal History Transcript. The Chicago Police will provide your state record for no additional cost.

What do I look for in my criminal record?

To figure out if the cannabis convictions on your criminal record qualify to be vacated and expunged, you need to look at each item in your criminal record and find the:

- The **arrest date** and the **police department** that arrested you.
- **Charge**: The offense you were charged with in court, or the offense you were arrested for and released without being charged.
- **Disposition (Outcome)**: The outcome of the case. For example, guilty or not guilty.
- **Sentence**: The penalty or punishment you received.
- The **date you completed the sentence**, including any probation or supervision.

Once you find these on your criminal record, review the box on page 2 to see if your conviction qualifies to file a *Motion to Vacate & Expunge Eligible Cannabis Convictions*.



STEP 2

FILL OUT AND FILE THE FORMS.



To determine if you can vacate and expunge your cannabis convictions complete the Case Worksheet on page 13 of this booklet. Once you have completed your worksheet, you do not need to look at your court records and RAP sheets to complete the *Motion* form.

How do I fill out the *Motion to Vacate & Expunge Eligible Cannabis Conviction*?

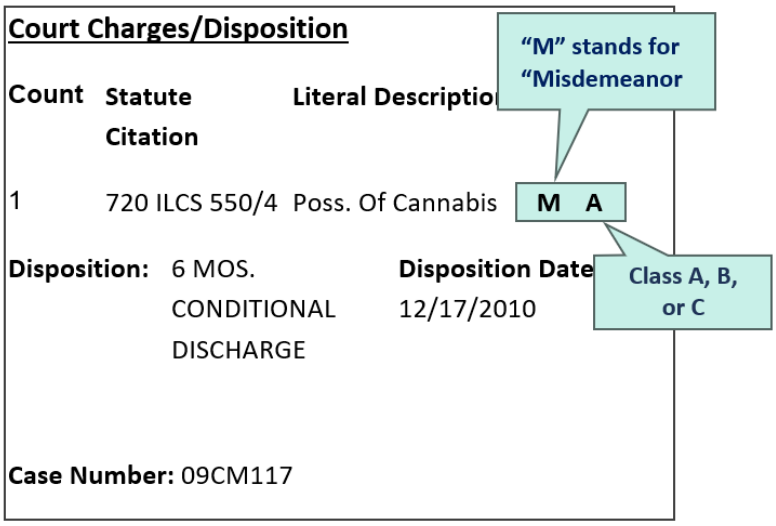
The form has instructions to help you. Below is some additional information on how to fill out the *Motion to Vacate & Expunge Eligible Cannabis Convictions* form.

- **Section 1:** To find out if an offense is a Class 4 felony or misdemeanor, follow these instructions and look at the examples below for where to find the information:
  - Look at your RAP sheet or court records for the **"Type"** of crime. There will be either an "F" for felony or "M" for misdemeanor. In most counties outside of Cook, felony offenses have a "CF" in the case number and misdemeanors have a "CM" in the number.
    - NOTE: You can also be convicted of a misdemeanor in a "CF" case.
  - Then, look for the **"Class"** of misdemeanor or felony. Misdemeanors can have a Class A, B or C. Felonies can have a Class X, 1, 2, 3 or 4.
  - For the purposes of this form, cannabis convictions for ***any* misdemeanor** and **Class 4 felony** may be eligible to vacate.

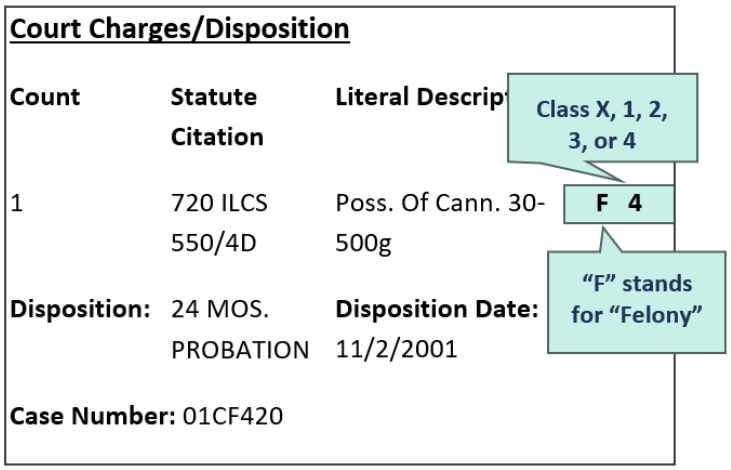
- Examples of a conviction include: Fine Only, County Jail, Supervision Terminated *Unsatisfactory*, Conditional Discharge, 710, 1410, TASC or Second Chance Probation Terminated *Unsatisfactory* and Department of Corrections.

- For **1A,** check the box if any of the cases listed in your *Motion* resulted in misdemeanor convictions for cannabis offenses only.
  - For example, if you received a conviction for a misdemeanor cannabis offense on Count 1 of a case, and you had a charge for theft that was dismissed on Count 2, check this box.
  - However, if you pleaded guilty and were given supervision or convicted on the theft charge in Count 2, you cannot use this form. Instead, see *How to Clear Your Criminal Record: Expungement & Sealing* at ilcourts.info/expunge-forms.
- For **1B**, check the box if any of the cases listed in your *Motion* resulted in Class 4 felony convictions for cannabis offenses only.
  - For example, if in a case you received a conviction for a Class 4 felony cannabis offense, and you had a charge of Driving on a Suspended License that was dismissed on Count 2, check this box.
  - However, if you pleaded guilty and were given supervision or convicted on the Driving on Suspended License charge in Count 2, you cannot use this form. Instead, *see How to Clear Your Criminal Record: Expungement & Sealing* at ilcourts.info/expunge-forms for more information.

Example of a Misdemeanor Case:



Example of a Felony Case:



- **Section 2:** Check this box if *all* of the cannabis convictions you want to vacate and expunge happened **before June 25, 2019**.
  - If any of your cannabis convictions happened *on or after* June 25, 2019, you cannot use this form for those convictions. See *How to Clear Your Criminal Record: Expungement & Sealing* at ilcourts.info/expunge-forms for more information.
- **Section 3**: Have you completed your sentence on **each** of the cases listed in your *Motion* form?
  - For example, if you are currently on probation or conditional discharge for a cannabis case, you cannot file a *Motion to Vacate & Expunge Eligible Cannabis Convictions* for this case until the sentence has been discharged or conditions have been completed.
- **Section 4:** Below are the definitions of the columns in the table on page **2** of the *Motion* form.
  - **Case Number**: Enter each case number listed on your court records or RAP sheet.
  - **Arresting Agency**: Enter the name of the police department that arrested you.

- **Cannabis Conviction**: Check the applicable box whether your cannabis conviction was a misdemeanor or Class 4 felony.
- **Date of Arrest**: Enter the date you were arrested as listed on your court records or RAP sheet.

See page 13 for more help filling out the table in Section 4.

How do I fill out the *Order Granting or Denying Motion to Vacate & Expunge Eligible Cannabis Convictions?*

- Enter the case numbers for all eligible cannabis convictions in your criminal record. These should match the case numbers in the box on Page 1 of your *Motion* form.
- If you have more than 20 eligible cannabis convictions, you will need to fill out additional *Order* forms.
- You will not check any boxes on the *Order* form. The judge will check the correct boxes once a decision has been made about your *Motion*.
- You will get the *Order* back from the court telling you if the judge approved or denied your *Motion to Vacate & Expunge Eligible Cannabis Convictions*.

EXTRA HELP WITH THE FORMS

Easy Form

Illinois Legal Aid Online has an Easy Form program that helps you complete your forms. Easy Forms ask simple questions and put your answers in the right places on the forms. At the end of the program, you can download or email your forms to e-file or print them.

Easy Forms are free to use. Visit ilao.info/can-ex-easy-form or scan the QR code to use the Easy Form.

IL Court Help

For more information about going to court, including how to fill out and file forms, **call or text Illinois Court Help** at 833-411-1121 or go to ilcourthelp.gov.

If there are any words or terms used in these instructions that you do not understand, please **visit Illinois Legal Aid Online** at ilao.info/glossary. You may also find more information, resources, and the location of your local legal self-help center at ilao.info/lshc-directory.

ILAO LEGAL HELP. ANYTIME. ANYWHERE.

COSTS AND FEES

There may be costs and fees to take part in a court case. This might include fees for filing court documents. Some case types have no fee for filing. Depending on the type of court case, there may be other costs and fees charged – for example, sheriff's fees for serving documents on the other people in the case. If you cannot afford to pay costs and fees, you can ask the court to file for free or at a reduced cost by filing an *Application for Waiver of Court Fees.*

This is a separate form you can find at ilcourts.info/fee-waiver-forms.

HOW TO FILE THE FORMS

- Before you file your forms, contact your Circuit Clerk's office and ask how your county files expungement and sealing requests.
- To find the phone number for your Circuit Clerk, visit ilcourts.info/clerks. You can also check your Circuit Clerk's website for more information.



STEP 3

NEXT STEPS.

Will I have to go to court?

- Some counties schedule a court date right away, but others will only schedule a court date if there is an objection to your *Motion*.



Make sure you know how to attend your court date.

Your court date could be in person, by phone, or by video. If it is by phone or video, it is called a "Remote Appearance." Call the Circuit Clerk or visit their website for more information. To find the phone number for your Circuit Clerk, visit ilcourts.info/clerks.

Your court date could be in person, by phone or by video.

- If your court date is in person:
  - Get to the courthouse at least 30 minutes early so you have enough time to get through security.
  - Go to the courtroom number listed on your court form.
  - If your forms do not have a courtroom number, look for a list of cases at the courthouse or ask someone at the Circuit Clerk's office.
  - Check in with the courtroom staff and wait for your name and case number to be called.
- If your court date is by phone or video:
  - Make sure to have the call-in or login information for your court date and make sure your technology is working.
  - Follow the instructions on the court notice you received. Call the Circuit Clerk or Circuit Court or visit their websites for specific technology instructions.
  - Start trying to log-in to your courtroom at least 15 minutes before the start time in case you have any problems with technology.
  - Follow these tips to attend court by phone or video: ilcourts.info/remote-resources.
- When your case is called, introduce yourself to the judge. If you are attending by phone or video remember to unmute yourself.
- You must attend the court date if one is scheduled. If you do not go to your court date, your case could be dismissed.

How do I present my case to the judge?

- Tell the judge your side of the case and answer their questions. Be prepared to tell the judge about specific negative results you have suffered or may suffer if your Motion is denied.
- You will have a chance to respond to any objections to your Motion.
- The prosecutor will be at your court date and could ask you questions about your case.

How does the judge decide to approve or deny my *Motion to Vacate & Expunge Eligible Cannabis Convictions*?

Requests are not automatically approved just because you are eligible under the law. To decide, the court may:

- Determine if you are eligible under the law;
- Review any objections from the prosecutor;
- Consider any response to the objections that you give in person at court or in writing; AND
- Review other factors the judge is allowed to consider under the law, including:
  - Your age now and at the time of the offense;
  - The period of time between the conviction and the filing of the *Motion*; AND
  - The specific negative results you may suffer if the *Motion* is denied. Be prepared to tell the judge about these.

How will I find out if my *Motion* is granted or denied?

- The judge will either make a decision at the court date, inform you that the decision will be mailed to you, or give you a new court date to come back to learn the judge's decision.

Information for After Your Court Date

What do I do with the *Order* granting or denying my *Motion* after I get it?

- If your *Motion* is granted, it is very important that you keep a copy of the *Order* that you receive from the Circuit Clerk in a safe place.
- Once the record is expunged, the Circuit Clerk will not be able to access the court file, including the *Order*.

If my *Motion* is granted, how long will I have to wait before my record is expunged?

- Once the judge grants the expungement, the Circuit Clerk court file will be expunged.
- The Illinois State Police and the arresting agencies have **60 days** from receipt of the *Order* to comply.

How will I know when my record has been expunged?

- The record will no longer be visible on the Circuit Clerk's public website or office.
- The Illinois State Police should send you a letter stating that they have expunged your record. Until you receive this letter, the expungement has not yet been completed.
  - The Illinois State Police will also send a copy of the *Order* to the Federal Bureau of Investigation (FBI). The FBI does not send verification that they have expunged your records; you may check that the FBI has expunged your records by getting an FBI background check at: fbi.gov/services/cjis/identity-history-summary-checks.

Can anyone find out about my cannabis conviction once it has been vacated and expunged?

- An employer and members of the public cannot see expunged records or find out that you have had a record expunged. However, some federal agencies will be able to see your expunged records.

If my records are expunged, do I have to tell potential employers or landlords about it?

No, you do not have to tell employers or landlords about your vacated and expunged cannabis conviction.

- On job or rental applications you may answer "no" to the question "Have you ever been convicted" if your entire criminal record was expunged or sealed.
- If you filed a *Motion to Vacate & Expunge Eligible Cannabis Convictions* and the court has not yet decided your *Motion*, if asked, you still have to report your criminal record to a potential employer after an interview or conditional offer of employment.

- In Illinois, it is against the law for employers to ask if you have expunged or sealed any criminal records unless they are one of the agencies authorized by law to do so.
- If an employer finds out that you expunged or sealed any criminal records, they cannot use that against you or they will violate the Illinois Human Rights Act 775 ILCS 5/1-101-10/104.

What can I do if my *Motion* is denied?

- Ask for **Reconsideration**: You can ask the judge to look at your *Motion* again.
  - File a Motion for Reconsideration with the Circuit Clerk within 60 days from the day you received a copy of the *Order* denying your *Motion*.
  - You may have to pay another filing fee unless you have a fee waiver. Send a copy of your Motion for Reconsideration and Notice of Motion forms to the prosecutor.
- **Appeal**: You can ask the appellate court to review the circuit court decision. You may find the *Notice of Appeal* at ilcourts.info/appl-forms.
  - File a *Notice of Appeal* with the Circuit Clerk within 30 days from the day the *Order* was entered denying your *Motion;* OR
  - If you file a Motion for Reconsideration and it is denied, file a *Notice of Appeal* within 30 days from the day the *Order* was entered denying your Motion for Reconsideration.
  - You will have to pay a filing fee to the appellate court unless you have a fee waiver from the appellate court. There is another fee for the Circuit Clerk to prepare the *Request for Preparation of Record on Appeal*. Give the Circuit Clerk a copy of your *Order for Waiver of Court Fees* (if you have one) and pay your portion of the fees. You can find more information about *Request for Preparation of Record on Appeal* at ilcourts.info/appl-forms.
  - If you choose to appeal, the appellate court decision may become part of the public record, so even if you are ultimately successful in your expungement of your criminal records, the appellate case (including information on your expunged criminal record) will not be expunged.
- **File to Seal**: All cannabis conviction records are eligible for sealing in Illinois so long as the waiting period has passed. *See How to Clear Your Criminal Record: Expungement & Sealing* at ilcourts.info/expunge-forms.
- **File a Petition for Executive Clemency**: You can file a petition with the Prisoner Review Board requesting the Governor grant a pardon authorizing expungement. For more information, go to state.il.us/prb.

APPENDIX: CASE WORKSHEET

Use this worksheet to **get the information from your entire criminal record in one place**.

- You can find all the information you need to fill in the worksheet on your court dispositions, RAP sheets, and information from the Illinois State Police Access and Review process.
- There are three tables on pages 16 and 17 of this instruction booklet to help you determine if a sentence or disposition qualifies as a conviction for the purposes of expungement and sealing.

How do I complete the Case Worksheet?

Using the information on your court records and any RAP sheets you have, fill in your Case Worksheet with this information for each case:

- **Case Number**: Enter the case number listed on your court disposition or RAP sheet.
- **Arresting Agency**: Enter the name of the police department that arrested you.
- **Charge**: Enter all offenses you were charged with for each case number, for example “possession of cannabis” and “possession of drug paraphernalia.”
- **Misdemeanor or Felony**: Enter whether each charge was a misdemeanor or the class of felony. For example, if the charge is a class B misdemeanor, enter as a "misdemeanor." If the charge is a class 3 felony, enter as a "class 3 felony."
- **Date of Arrest**: Enter the date you were arrested that is listed on your court disposition or RAP sheet.
- **Outcome**: See Tables 1, 2, and 3 on pages **16** - **17** for types of outcomes.
- **Conviction (Yes or No)**: The types of outcomes listed in **Table 1** are convictions.
- **Sentence Completion Date**: Enter the date your sentence ended.

What if I see an arrest on my criminal record but there is no charge, disposition or sentence listed?

- Not all arrests lead to charges, so there may not be a charge, disposition, or sentence listed on your record. Since there was no conviction involved, this is not the proper form to use. *See How to Clear Your Criminal Record: Expungement & Sealing* at ilcourts.info/expunge-forms for more information on expunging such cases.

	Case Number	Arresting Agency	Charge	Misdemeanor or Class of Felony	Date of Arrest	Type of Sentence	Conviction (Yes or No)	Sentence Completion Date
1								
2								
3								
4								
5								
6								
7								
8								
9								

SAMPLE CASE WORKSHEET

The samples below give two examples of how to fill out your own case worksheet. **On this page**, the defendant, John Doe, was charged with a misdemeanor cannabis offense and was sentenced to County Jail. His sentence was completed. He is **eligible to use this form to vacate and expunge this conviction**.

	Case Number	Arresting Agency	Charge	Misdemeanor or Class of Felony	Date of Arrest	Type of Sentence	Conviction (Y/N)	Sentence Completion Date
1	05121978901	Chicago	Possession of Cannabis	Misdemeanor	11/4/05	Jail	Y	12/13/05

Sample Cook County Court Disposition

IN THE CIRCUIT COURT OF COOK COUNTY. ILLINOIS

Case Number

PEOPLE OF THE STATE OF ILLINOIS
VS
JOHN DOE

NUMBER 05121978901

CERTIFIED STATEMENT OF CONVICTION / DISPOSITION

I, Clerk of the Circuit Court of Cook County,
Illinois, and keeper of the records and seal thereof do hereby certify

The State's Attorney of Cook County/Local Prosecutor has filed a
complaint with the Clerk of the Circuit C
Charging the above named defendant w

Charge

720-550/4-C M A **POSSESSION OF CANNABIS**

Misdemeanor

The following dispo dered before the Honorable
Judge(s):

11/05/2005 BOND SET BY RULE OF COURT 11/17/2005 3154
Smith, Gerald T.

11/17/2005 BOND FORFEITURE B001
Smith, Gerald T.

12/13/2005 PLEA OF GUILTY C001
Smith, Gerald T.

12/13/2005 FINDING OF GUILTY C001
Smith, Gerald T.

12/13/2005 COOK COUNTY DEPARTMENT OF CORRECTIONS- 1 DAY C001
Smith, Gerald T.

12/13/2005 TIME CONSIDERED SERVED C001
Smith, Gerald T.

Sample Chicago Police RAP Sheet

CHICAGO POLICE DEPARTMENT
3510 S. Michigan Avenue/Chicago, IL 60653
Identification Section
Criminal History Report

DOE, JOHN
IR # 978380 MALE
SID # WHITE
FBI # 5'10"
IDOC # EYES: BRO
Current Arrest Information: HAIR: BLK
Date of Birth: 2-OCT-1974
Age: 39 years

Place of Birth: CHICAGO, IL
Driver's License #: Q4838171920282782
Driver's Lic. State: ILLINOIS
Scars, Marks & Tattoos:

Criminal Justice Summary: Total arrests: 1 (1 Misdemeanor) Total Convictions:

Date of Arrest

ARREST

Arrest Name: DOE, JOHN **Date: 11/4/2005** Holding Facility:
Date of 2-OCT-1974 Arrest NORRID
DCN or CB: 05456347 Residence: 230 E. G
Officer: JONES Officer Badge #: 53 **Arresting Agency: CPD**

Arresting Agency

Count	Class	Type	Statute	Arrest Charge Description
[1]	A	M	720 ILCS 550/4c	Possession of Cannabis

COURT CHARGES/ DISPOSITION

Statute	Charge	Class
50/4c	Possession of Cannabis	**M**

Outcome

Sentence Completion Date

Disposition: SENTENCED/JAIL *Disposition Date:* **13-DEC-2005**
Sentence: JAIL 0 YEARS 0 MONTHS 1 DAYS *Sentence Date:* 13-DEC-2005

On this page, the defendant, Jane Doe, was charged with a Class 4 felony cannabis offense and was sentenced to probation. Her sentence was completed. She is **eligible to use this form to vacate and expunge this conviction.**

	Case Number	Arresting Agency	Charge	Misdemeanor or Class of Felony	Date of Arrest	Type of Sentence	Conviction (Y/N)	Sentence Completion Date
1	09-CF-117	Ford County Sheriff	Possession of Cannabis	Felony- Class 4	10/23/09	Probation	Y	12/17/10

Sample County Court Disposition (Not Cook County)

IN THE CIRCUIT COURT OF THE ELEVENTH JUDICIAL CIRCUIT

FORD COUNTY, ILLINOIS

Case Number

PEOPLE OF THE STATE OF ILLINOIS,)
Plaintiff,)
vs) No. 09- CF-117
Jane Doe)
Defendant)

JUDGMENT AND SENTENCE
OF PROBATION/COURT SUPERVISION/CONDITIONAL DISCHARGE

The case coming on for sentencin ving pled guilty of)
-the offense(s) of:

Charge

Unlawful Possession of Cannabis 30 to 500 grams
Class 4 Felony

and a Pres tence Report having been waived and hearing
in agg n waived; The Court finds there is a
factua sis for a finding of guilty. The Court further
finds that imprisonment in the Illinois Department of Corrections is not necessary for the protection of the public, and the following sentence does not deprecate the seriousness of the Defendant's conduct and is consistent with the ends of justice.

Felony

ACCORDINGLY IT IS THE ORDER OF THIS COURT, that the Defendant is placed on probation
for a period of 12 (months) subject to the following conditions:

THE DEFENDANT SHALL:

GS (X) 1. not violate any criminal statute of any jurisdiction;

. . .

GS (X) 8. pay a fine of $ 750 ; court costs of . . . and Probation fees in the amount of $ 25 per month;

. . .

This case is continued to 12/17/10 except for review or remission hearings.

ENTER: 12/17 , 20 09 Gerald T. Smith
JUDGE

TERMINATION DATE: 12/17 , 20 10

Sample Illinois State Police RAP Sheet

ILLINOIS STATE POLICE

Bureau of Identification
260 North Chicago Street
Joliet, IL 60432-4075

Criminal History Of: Doe, Jane (Last Known Name) State Identification #: IL 9876543
Conviction Status: FELONY CONVICTION
Custodial Status:

Alias Name(s)	Date of Birth
DOE, JANE	01/13/1981

SUBJECT IDENTIFICATION DATA

Sex: FEMALE
Race: WHITE
Height: 5'4" **Date Reported:** 10/23/2009 **FBI#:**
Weight: 105 **Date Reported:** 10/23/2009 **Chicago IR#:**
Eyes: BLUE
Hair: BLACK
Skin: MEDIUM

Scars/Marks/Tattoos	Place of Birth	Driver's License #	DL State
TAT L LEG	ILLINOIS	K12	

Date of Arrest

CRIMINAL HISTORY DA
Arrest

Arresting Agency

DCN: P129393
Name: DOE, JANE
Residence: 123 N.

Date of Arrest: 10/23/2009
Date of Birth: 01/13/1981

Arresting Agency: FORD COUNTY SHERIFF'S OFFICE
Agency Case Number: 1234567 **Officer Badge Number:** 008

Arrest Charges

Count	Statute Citation	Literal Description	Class
1	720 ILCS 550/4	Poss. Of Cannabis	4

State's Attorney Section
Filing Decision: FILED **Decision Date:** 10/23/2009

Count	Statute Citation	Literal Description	Class
1	720 ILCS 550/4	Poss. Of Canna	

Agency Name: FORD COUNTY STATE'S ATTOR

Sentence Completion Date

Outcome

s/Disposition

	atute Citation	Literal Descrip	ss
1	720 ILCS 550/4	Poss. Of Cannabis	4

Disposition: PROBATION **Disposition Date: 12/17/2010**
Case Number: 09CF117 **Agency Name:** FORD COUNTY CIRCUIT

CASE OUTCOME DEFINITIONS

Look at all the entries in the "Outcome" column of your Case Worksheet.

Outcomes in **Table 1 MAY be eligible** for a *Motion to Vacate & Expunge Cannabis Convictions*, depending on the type of offense.

Outcomes in **Tables 2 and 3** are **not** convictions and are **not eligible** for a *Motion to Vacate & Expunge Cannabis Convictions.*

TABLE 1: These outcomes mean that you were convicted and *may* be eligible for expungement through a *Motion to Vacate and Expunge Cannabis Convictions.* If it is not an eligible cannabis conviction, instead, see *How to Clear Your Criminal Record: Expungement & Sealing* at ilcourts.info/how-to-expunge-adult.

Outcome Abbreviation	Disposition/Outcome	More Information
MC or FC	IDOC (Illinois Department of Corrections) or County Departments of Corrections (jail)	You were found guilty of an offense. You were sentenced to time in jail or prison.
MC or FC	Conditional Discharge	You were found guilty of an offense. You were sentenced to comply with certain conditions, but you did not have to report to a probation officer.
MC or FC	Probation (not Qualified Probation)	You were found guilty of an offense. You were sentenced to report to a probation officer.
MC or FC	Fine (without court supervision)	You were found guilty of an offense. You were sentenced to pay a fine.

- ***Use MC if you were convicted of a misdemeanor. Use FC if you were convicted of a felony.***

TABLE 2: These outcomes mean that you were convicted, but there is a special situation and the case is eligible for expungement. However, these outcomes are NOT eligible for *A Motion to Vacate & Expunge Cannabis Convictions*. Instead, see *How to Clear Your Criminal Record: Expungement & Sealing* at ilcourts.info/how-to-expunge-adult.

Outcome Abbreviation	Disposition/Outcome	More Information
RV	Guilty/Conviction Reversed Or Vacated	You were found guilty of an offense, but the conviction was reversed or vacated.
P	Guilty/Conviction with a Pardon from the Governor	You were found guilty of an offense, but the Governor granted you a pardon that allows the expungement of your criminal record.
CE	Guilty/Conviction with a Certificate of Eligibility for Expungement from the Prisoner Review Board	You were found guilty of an offense, but you petitioned the Prisoner Review Board and were granted eligibility to erase a conviction from your criminal record.

TABLE 3: These outcomes mean that you were NOT convicted and are eligible for expungement. These outcomes are NOT eligible for a *Motion to Vacate & Expunge Cannabis Convictions*. Instead, see *How to Clear Your Criminal Record: Expungement & Sealing* at ilcourts.info/how-to-expunge-adult.

Outcome Abbreviation	Disposition/Outcome	More Information
DA	Dismissal	The state stopped prosecuting your case and the court dismissed the case.
DA	Finding of No Probable Cause (FNPC)	The court dismissed the case because it decided that there was no probable cause (reason) to believe that you had committed the offense that you were accused of.
DA	Found Not Guilty (FNG)	The court decided you were not guilty of the offense you were charged with.
DA	Nolle Prosequi	The state stopped prosecuting your case and the court terminated the case.
DA	Non-Suit	The prosecutor has the option to bring the case back up again. If they do not, the case is considered terminated.
DA	Stricken Off with Leave to Reinstate (SOL)	The State has the option to bring the case back up again. If they do not within 120 – 160 days, the case is considered terminated.
DA	Diversion Program	You participated in a diversion program (or other special program) that ended in the case being dismissed.
RWC	Released without Charging	You were arrested but not charged with an offense or brought to court.
S	Court Supervision, Completed Successfully	The court kept your case open for a set period of time. You followed the conditions during that time and the court dismissed the criminal charges against you.
QP	Successfully completed First Offender Drug Probation or Qualified Probation	This type of probation can also be called 410, 710, 1410, or TASC probation when the court determines the arrest was a result of alcohol or drug addiction and must be reflected in the record. You can tell if you received this special type of probation by the court disposition.